

1.

CASE #	CASE NAME	HEARING NAME
CVRI2404726	SANTA CRUZ VS J. B. HUNT TRANSPORT, INC.	MOTION TO CONSOLIDATE

Tentative Ruling: Defendant's UNOPPOSED motion to consolidate is granted. This instant case, CVRI2404726, will be the lead case.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2404726	SANTA CRUZ VS J. B. HUNT TRANSPORT, INC.	JOINDER TO AMAZON DEFENDANTS' MOTION TO CONTINUE THE TRIAL DATE AND ALL ATTENDANT DATES

Tentative Ruling: Hearing is vacated as moot.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2507414	HERRERA VS FCA US LLC	DEMURRER TO PLAINTIFF' S COMPLAINT

Tentative Ruling: On May 28, 2026, Plaintiffs dismissed their sixth cause of action and prayer for punitive damages, without prejudice. Accordingly, the demurrer and motion to strike are moot.

4.

CASE #	CASE NAME	HEARING NAME
RIC2002846	CITY OF CORONA VS CERCA TROVA RESTAURANT GROUP HOLDINGS INC	OBJECTIONS REGARDING RIGHT TO TAKE

Tentative Ruling: Defendants C.P.I. Properties, LP and Citizens Business Bank's Objection to 2025 Resolution is sustained.

REQUEST FOR JUDICIAL NOTICE:

Defendants request judicial notice of several documents filed in this action. These documents may be judicially noticed pursuant to Cal. Evid. Code §452(d), which permits judicial notice of court records. However, "although the existence of a document may be judicially noticeable, the truth of statements contained in the document and its proper interpretation are not subject to judicial notice if those matters are reasonably disputable." (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal. App. 4th 97, 113.) The request is granted.

Defendants also request judicial notice of the 2020 Resolution and 2025 Resolution. The request is granted pursuant to Evid. Code § 452(b), which provides for judicial notice of legislative enactments.

OBJECTION TO ADMINISTRATIVE RECORD:

Defendants object to the Administrative Record, which they contend includes documents that were not produced or relied upon during the September 3, 2025 hearing adopting the 2025 Resolution. The Administrative Record was rejected by the Court and is not currently on file.

“[A] trial court's *review of the validity of the resolution of necessity* under section 1245.255 is limited to a review of the agency's proceedings. No additional evidence may be admitted. (*Santa Cruz County Redevelopment Agency v. Izant* (1995) 37 Cal. App. 4th 141, 150, emphasis in original.) However, where issues other than the validity of the resolution of necessity are raised, additional evidence may be introduced on such issues. (Id at 150-151.) Here, Defendants do not challenge the validity of the 2025 Resolution based on disputes as to the public necessity finding. Rather, Defendants challenge the Resolution as procedurally flawed in that the taking occurred prior to the Resolution. The parties appear to agree that the scope and duration of the taking exceeded the 2020 Resolution.

Eminent domain proceedings are not actions at law. They are special proceedings governed by statute commencing at CCP §1230.010, and have distinct procedures not found in other civil actions. The owners of the interests in the property are brought to court to clear the title for public use and fulfill the constitutional requirement of payment of just compensation. (*City of Oakland v. Oakland Raiders* (1982) 32 Cal.3d 60, 64.)

The exercise of eminent domain power requires a finding of public necessity. (CCP § 1240.030.) There are three elements to a finding of public necessity: 1) public interest and necessity must require the project; 2) the project must be planned or located in the manner that will be most compatible with the greatest public good and the least private injury; 3) the property sought to be acquired must be necessary for the project (collectively “public necessity findings”). (CCP § 1240.030.) If the agency decides the taking meets the criteria, then it must adopt a resolution of necessity, which is a prerequisite to beginning an eminent domain action. (CCP §§ 1240.040; 1245.220.) Once a resolution of necessity is adopted, the resolution conclusively establishes the three criteria set forth under section 1240.030. (CCP § 1240.250; *County of San Diego v. Bressi* (1986) 184 Cal.App.3d 112, 116 (“*Bressi*”).)

However, a person having an interest in property described in a resolution of necessity may still obtain judicial review of the validity of the resolution. (CCP § 1245.255). Review is available before the eminent domain action via a traditional writ of mandate pursuant to section 1085 or after the commencement of the eminent domain proceeding by objection to the right to take. (CCP § 1245.255; *Anaheim Redevelopment Agency v. Dusek* (1987) 193 Cal.App.3d 249, 255.) A resolution of necessity does not have the conclusive effect prescribed in Section 1245.250 to the extent that its adoption or contents were influenced or affected by gross abuse of discretion by the governing

body. (CCP § 1250.255(b).) A gross abuse of discretion may be shown by a lack of substantial evidence supporting the resolution or that the condemnor had irrevocably committed itself to the taking of the property regardless of the evidence presented. (*Santa Cruz County Redevelopment Agency v. Izant* (1995) 37 Cal. App. 4th 141, 149.) Courts apply the standard of review applicable to writ petitions under CCP § 1085, which is to determine “whether adoption of the resolution by the governing body of the public entity has been arbitrary, capricious, or entirely lacking in evidentiary support, and whether the governing body has failed to follow the procedure and give the notice required by law.” (*Anaheim Redevelopment Agency v. Dusek* (1987) 193 Cal. App. 3d 249, 257-258.) Generally, the court’s review of the validity of a resolution of necessity is limited to a review of the agency’s proceedings. (*City of Lincoln v. Barringer* (2002) 102 Cal. App. 4th 1211, 1222.)

Defendants argue that the 2025 Resolution was an abuse of discretion because the City failed to follow procedure required by law in adopting the Resolution after the additional takings and uses occurred. A public entity may exercise the power of eminent domain only if it has adopted a resolution of necessity that meets the requirements of the Eminent Domain Law. (CCP § 1240.040.) The resolution of necessity conclusively establishes the extent of the taking and “the public agency may not later expand the scope of the taking as defined in the resolution of necessity without paying additional compensation. (*Bressi, supra*, 184 Cal. App. 3d at 122-123.)

Here, the City adopted the initial Resolution of Necessity on June 3, 2020, authorizing the City to acquire the Properties by eminent domain. (Deft. COE, Ex. B.) It is undisputed that due to unforeseen circumstances, the duration the Property greatly exceeded the expected completion deadline of June 2023. In fact, it appears that the taking is ongoing. Furthermore, it is undisputed that the Project required additional uses and takings that were not described in the 2020 Resolution. The City’s person most knowledgeable testified that the time and area limited take had been exceeded. (COE, Ex. 8, 130:21-25.) On August 18, 2025, the City sent a letter explaining the increased duration and uses. (Deft. COE, Ex. 9.)

The City argues that it was entitled to amend the Resolution to include the additional uses and takings. CCP §1250.340(b), provides: “A public entity may add to the property sought to be taken only if it has adopted a resolution of necessity that satisfies the requirements of Article 2 (commencing with Section 1245.210) of Chapter 4 for the property to be added.” A public entity may formally emend a resolution of necessity after an eminent domain action has been filed. (See *Bressi, supra*, 184 Cal. App. 3d at 122-123; *Coachella Valley Water Dist. v. Western Allied Properties, Inc.* (1987) 190 Cal. App. 3d 969, 978-979.) However, the cases relied by the City involve amendments to the resolutions of necessity based on prospective additional uses. For example, in *Coachella Valley Water District*, the defendant sought compensation for taking that rendered its property landlocked and the trial court permitted the jury to consider evidence that the defendant would be granted access to the water at some point in the future. (Id at 978.) The Court held that a formal amendment to the resolution of necessity providing for access would eliminate the issue. (Id at 979.) Defendants cite no authority holding that a public entity may simply take private property not permitted by the resolution of necessity without any hearing on the additional use or taking and seek

amendment years after the fact. This appears to violate the purpose of the resolution of necessity requirement. Accordingly, the 2025 Amended Resolution is an improper abuse of discretion.

Defendants also argue that the hearing held to approve the 2025 Resolution was a sham hearing since the City had already committed to approving the resolution. A public agency must hold a hearing to consider whether the taking meets the Public Necessity Findings criteria under section 1240.030. (CCP § 1245.235; *Redevelopment Agency v. Norm's Slausen* (1985) 173 Cal.App.3d 1121, 1125.) The person whose property is to be acquired must be given notice and an opportunity to be heard. (CCP § 1245.235.) The notice and opportunity to be heard prior to the adoption of the resolution of necessity are integral to the property owner's procedural due process rights. (*City of Stockton v. Marina Towers LLC* (2009) 171 Cal. App. 4th 93, 108-109.) "Implicit in this requirement of a hearing and the adoption of a resolution of necessity is the concept that, in arriving at its decision to take, the Agency engage in a good faith and judicious consideration of the pros and cons of the issue and that the decision to take be buttressed by substantial evidence of the existence of the three basic requirements set forth in Code of Civil Procedure, section 1240.030." (*Redevelopment Agency, supra*, 173 Cal. App. 3d at 1125-1126.) A hearing conducted after the public entity has irrevocably committed itself to take the property regardless of what evidence is produced, may be considered a sham hearing. (*Id* at 1127.) The agency may not "simply 'rubber stamp' a predetermined result." (*Ibid.*)

In this case, it is clear that that the City was irrevocably committed to additional takings provided for by the 2025 Resolution since the takings had already occurred. The purpose of the hearing was not to make the required public necessity findings under section 1240.030. Instead, the City sought to amend the 2020 Resolution to conform to the expanded scope of the taking. The Resolution states:

WHEREAS, in the course of construction of the Project the City used a portion of the Property Interests (referred to as a temporary construction easement, or "TCE") for a longer period of time than what was anticipated when the June 3, 2020 Resolution 2020-043 was adopted; and

WHEREAS, in the course of construction of the Project, the City's contractor impacted portions of the Property Interests in ways that were not anticipated when Resolution 2020-043 was adopted...

WHEREAS, the City proposes to amend Resolution No. 2020-043 adopted June 3, 2020 to add to the acquisition identified in the June 3, 2020 Resolution 2020-043 the additional property rights necessary for the Project.

(Deft. COE, Ex. 1.) There was no reasonable possibility that the Amended Resolution would not be adopted since the property had already been taken. As such, it appears that the City simply "rubber stamped" the 2025 Resolution. Defendants had no real opportunity to be heard in violation of the right to due process. This also shows an abuse of discretion.